

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #6	CCRB Case #: 201810259	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 12/09/2018 2:40 AM	Location of Incident: in front of § 87(2)(b) and at the 79th Precinct stationhouse	Precinct: 79	18 Mo. SOL 6/9/2020	EO SOL 1/24/2021	
Date/Time CV Reported Mon, 12/10/2018 1:53 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 12/10/2018 1:53 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Larry Meyers	00000	939030	079 PCT
2. POM Daniel Mcilrath	23526	963156	079 PCT
3. POM Nelson Caceres	01169	960304	079 PCT
4. POM Richard Reid	02529	964721	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Marotta	03139	953050	079 PCT
2. SGT Peter Reyes	05147	935487	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Daniel Mcilrath	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel Mcilrath stopped § 87(2)(b)	§ 87(2)(b)
B.POM Nelson Caceres	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Nelson Caceres stopped § 87(2)(b)	§ 87(2)(b)
C.POM Daniel Mcilrath	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel Mcilrath searched § 87(2)(b)	§ 87(2)(b)
D.POM Daniel Mcilrath	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel Mcilrath refused to provide his name to § 87(2)(b)	§ 87(2)(b)
E.POM Nelson Caceres	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Nelson Caceres refused to provide his name to § 87(2)(b)	§ 87(2)(b)
F.LT Larry Meyers	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Lieutenant Larry Meyers refused to provide his name to § 87(2)(b)	§ 87(2)(b)
G.POM Richard Reid	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Richard Reid refused to provide his name to § 87(2)(b)	§ 87(2)(b)
H.LT Larry Meyers	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Lieutenant Larry Meyers threatened to arrest an individual.	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
I.LT Larry Meyers	Off. Language: In the vicinity of § 87(2)(b) in Brooklyn, Lieutenant Larry Meyers made remarks to § 87(2)(b) based upon race.	
J.POM Daniel Mcilrath	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel Mcilrath failed to provide § 87(2)(b) with a business card.	
K.POM Nelson Caceres	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Nelson Caceres failed to provide § 87(2)(b) with a business card.	
L.LT Larry Meyers	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Lieutenant Larry Meyers failed to provide § 87(2)(b) with a business card.	
M.POM Richard Reid	Abuse: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Richard Reid failed to provide § 87(2)(b) with a business card.	
N.LT Larry Meyers	Abuse: At the 79th Precinct Stationhouse in Brooklyn, Lieutenant Larry Meyers did not process § 87(2)(b) complaint regarding officers.	
O.LT Larry Meyers	Abuse: At the 79th Precinct Stationhouse in Brooklyn, Lieutenant Larry Meyers failed to provide § 87(2)(b) with a business card.	

Case Summary

On December 10, 2018, § 87(2)(b) filed this complaint with the CCRB via the agency's website. Later that day, § 87(2)(b) filed a complaint with IAB via email, generating log #18-48359.

On December 9, 2018, at approximately 2:40 a.m., § 87(2)(b) was walking in front of § 87(2)(b) in Brooklyn when he was stopped by PO Daniel Mcilrath and PO Nelson Caceres of the 79th Precinct (**Allegations A and B: Abuse of Authority**, § 87(2)(g)). PO Mcilrath searched § 87(2)(b) (**Allegation C: Abuse of Authority**, § 87(2)(g)). Lieutenant Larry Meyers and PO Richard Reid of the 79th Precinct arrived on scene soon after. Lieutenant Meyers eventually explained that § 87(2)(b) matched the description of a suspect in a gun-related 911 call reported to be nearby. § 87(2)(b) asked all four officers for their names, none of which were provided to him (**Allegations D-G: Abuse of Authority**, § 87(2)(g)). A passer-by came onto the scene and when § 87(2)(b) asked this individual to stay on scene as a witness, Lieutenant Meyers told the individual to keep moving or he could be arrested (**Allegation H: Abuse of Authority**, § 87(2)(g)). When § 87(2)(b) asked to call his mother, Lieutenant Meyers referred to § 87(2)(b) as a "nigger" (**Allegation I: Offensive Language**, § 87(2)(g)). § 87(2)(b) was not offered any business cards (**Allegations J-M: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) was told he was free to go and he left.

At approximately 3:10 a.m., § 87(2)(b) went to the 79th Precinct stationhouse with his mother, § 87(2)(b) and asked PO Christopher Marotta of the 79th Precinct at the front desk that he wished to file a complaint. Lieutenant Meyers told PO Marotta to "Stand down." Lieutenant Meyers did not process the complaint (**Allegation N: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) asked Lieutenant Meyers for a business card but was not provided one (**Allegation O: Abuse of Authority**, § 87(2)(g)). There were no arrests made and no summonses were issued during this incident. There was no video footage regarding this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel Mcilrath stopped § 87(2)(b)

Allegation B – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Nelson Caceres stopped § 87(2)(b)

§ 87(2)(g)

On December 9, 2018, at approximately 2:40 a.m., § 87(2)(b) alleged that he was walking alone down § 87(2)(b) in Brooklyn, wearing dark jeans, a black hoodie, a black puffy jacket, black shoes, and a dark gray backpack with orange trim (BR 01-02). According to his self-reported confidential witness information sheet, § 87(2)(b) is a 6'1" black male (BR 03). He was walking directly from his home to a nearby subway station on his way to work when PO Mcilrath and PO Caceres drove their patrol vehicle onto the sidewalk, cutting off his path. Immediately after, Lieutenant Meyers and PO Reid mounted the sidewalk behind § 87(2)(b) with their police vehicle. PO Mcilrath exited his vehicle and told § 87(2)(b) to take his hands out of his pockets and get on the ground. § 87(2)(b) removed his hands from his pockets, but refused to get on the ground. § 87(2)(b) placed his backpack on the ground between his legs.

PO McIlrath asked § 87(2)(b) where he was coming from and where he was going and then requested identification. § 87(2)(b) asked multiple times why he was stopped. Lieutenant Meyers explained that § 87(2)(b) matched the description of a suspect with a gun.

PO McIlrath and PO Caceres § 87(2)(g) testified that they were at the 79th Precinct stationhouse at approximately 2:33 a.m. when they received a radio report of shots fired at § 87(2)(b). The shooter was described as a black male with a black hoodie or jacket and a backpack. PO McIlrath and PO Caceres immediately went to their patrol vehicle to canvass the area surrounding § 87(2)(b). During this canvass, they received the same description of the shooter again over their radio. Within ten minutes of canvassing, PO McIlrath, the operator, drove toward the intersection of § 87(2)(b) and PO Caceres pointed out § 87(2)(b) who was walking on § 87(2)(b). PO Caceres noted that § 87(2)(b) fit the suspect's description. This occurred less than ten minutes after the initial radio report. PO McIlrath recalled that § 87(2)(b) was wearing a black puffy jacket and possibly a hoodie, jeans, and a backpack. PO Caceres only generally recalled that § 87(2)(b) fit the pedigree and clothing description of the suspect. The officers stopped their vehicle, verified the information in the Event on a department-issued tablet, and then approached § 87(2)(b) in their vehicle. PO Caceres stated that they had observed § 87(2)(b) for about one minute prior to the stop and parked the vehicle in front of § 87(2)(b). Officers exited their vehicle and told § 87(2)(b) to stop before asking him to speak with them. § 87(2)(b) asked why he was stopped and the officers explained that § 87(2)(b) fit the description of a suspect who fired a gun in the area. § 87(2)(b) agreed to speak with officers. PO McIlrath stated that, at this point, § 87(2)(b) was not free to leave. PO McIlrath and PO Caceres put over the radio that they had stopped one male at their location. Lieutenant Meyers and PO Reid arrived soon after § 87(2)(b) was stopped. Both officers stated the only reason for the stop was § 87(2)(b) fitting the description of the suspect in the general vicinity of and soon after a report of shots being fired.

Both Lieutenant Meyers and PO Reid arrived on scene after PO McIlrath and PO Caceres communicated over the radio that they had stopped § 87(2)(b) (BR 06-07). § 87(2)(g) Lieutenant Meyers stated that § 87(2)(b) fit the suspect's description perfectly. He made no other observations that linked § 87(2)(b) with the possession of a firearm.

The Event information (BR 08) and audio of radio communications (BR 09) indicated that a suspect with a gun was reported to be on the top floor of § 87(2)(b) at approximately 2:33 a.m. The suspect was described as a tall black male wearing a black hoodie and a backpack on his back. The caller only identified himself as § 87(2)(b). It was unconfirmed whether the caller actually observed the suspect. The callback was confirmed to be a non-working number and no direction of flight by the suspect was provided. § 87(2)(b) was then stopped approximately two blocks away from the location of the alleged fired shots, at § 87(2)(b), and approximately seven minutes after it was reported, at 2:40 a.m.

For a stop of an individual to be justified, an officer must have reasonable suspicion that the individual is committing, has committed, or is about to commit a crime (People v. Debour, 40 N.Y.2d 210 [1976]) (BR 10). When an individual matches the general description of a perpetrator that has been broadcast over the radio and is observed by a police officer in close proximity to the incident location after a short period of time from the commission of the crime, that officer has reasonable suspicion to stop and detain that individual (People v. Currie, 131 A.D.3d 1265 [2015]) (BR 11).

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel Mcilrath searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that after being stopped, PO Mcilrath asked him to unzip his jacket, which § 87(2)(b) proceeded to unzip along with his hoodie. PO Mcilrath placed one hand on the exterior of § 87(2)(b) jacket and reached inside § 87(2)(b) hoodie with his other hand, bringing both hands together in a clapping motion. His hands were separated by § 87(2)(b) jacket and hoodie layers. PO Mcilrath then patted the exterior of § 87(2)(b) front jeans' pockets before frisking § 87(2)(b) lower back underneath his jacket. PO Mcilrath then asked to search § 87(2)(b) backpack. § 87(2)(b) declined to allow this search, but offered to open his backpack and display its contents to officers, which he proceeded to do. PO Mcilrath shone a flashlight into the backpack and looked inside. PO Mcilrath used this flashlight to move the contents of the backpack around (BR 12). § 87(2)(b) had no problem with showing officers his backpack or with the actions PO Mcilrath took in inspecting the backpack.

PO Mcilrath stated that after speaking briefly to § 87(2)(b) Lieutenant Meyers and PO Reid arrived on scene. Lieutenant Meyers asked PO Mcilrath if he had frisked § 87(2)(b) which PO Mcilrath confirmed that he had not. PO Mcilrath asked § 87(2)(b) if he could frisk him, and § 87(2)(b) agreed. PO Mcilrath confirmed that he would have conducted this frisk without Lieutenant Meyers' question. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) complied with PO Mcilrath's request to raise his arms. PO Mcilrath frisked § 87(2)(b) waist to check for any bulges or hard objects and the outsides of § 87(2)(b) outermost layer, either a jacket or hoodie, in his abdomen-torso area. The frisk revealed no weapons or other notable results. § 87(2)(b) exterior-most layer had a zipper, but PO Mcilrath did not recall if it was open or zipped-up during the incident. PO Mcilrath did not recall ever asking § 87(2)(b) to unzip any articles of clothing. PO Mcilrath only frisked the outside of § 87(2)(b) clothing. PO Mcilrath frisked § 87(2)(b) waist and upper-body as PO Mcilrath stated the waistband is the most typical area where individuals carry guns, and § 87(2)(b) jacket or hoodie pockets were large enough to carry a gun. PO Mcilrath then asked § 87(2)(b) to unzip his backpack for a visual search. § 87(2)(b) held his backpack and opened it for him to see inside. PO Mcilrath and PO Caceres frisked the bag and then shone a flashlight to look inside. The backpack contained many items, but no gun. PO Mcilrath felt no bulges upon frisking the outside of the bag, and saw no potential for there to be a gun inside when he looked in. No officers reached

inside the backpack, either with their hands or with an object. PO Reid and Lieutenant Meyers stood nearby.

The stop report, prepared by PO Mcilrath, indicated that consent for a search was requested from and provided by § 87(2)(b) (BR 13). The report indicated that a frisk was conducted, but that no search was conducted. PO Mcilrath believed that the consent for a search regarded § 87(2)(b) backpack, but reiterated that officers only visually inspected the bag.

PO Caceres stated that, after approaching § 87(2)(b) PO Mcilrath asked § 87(2)(b) if the officers could frisk him and search his bag. § 87(2)(b) told the officers that it would not be a problem. § 87(2)(b) was very compliant. PO Mcilrath frisked the front and back of § 87(2)(b) waistband, his pockets, and his legs. He did not enter any pockets. PO Caceres did not recall if § 87(2)(b) jacket was open or closed during the incident. Neither PO Caceres nor PO Mcilrath requested that § 87(2)(b) open his jacket or unzip any other articles of clothing at any point. PO Mcilrath never attempted to frisk the inside of § 87(2)(b) jacket or the interiors of any articles of his clothing. PO Caceres stood directly in front of § 87(2)(b) as PO Mcilrath conducted the frisk and search. Upon § 87(2)(b) consent, PO Mcilrath opened the bag and reached his hand inside. Due to PO Caceres' angle, he was unable to see the interior of the bag or specific actions PO Mcilrath took when he inspected the bag. Lieutenant Meyers arrived on scene while PO Mcilrath took these investigative steps, but did not provide any instructions to the officers.

Lieutenant Meyers did not observe any officer frisk or search § 87(2)(b) person or backpack nor was he informed whether a frisk or search occurred prior to his arrival. He recalled no physical interaction at all between any officer and § 87(2)(b) Lieutenant Meyers had no knowledge PO Mcilrath asking § 87(2)(b) to unzip any articles of clothing.

PO Reid stated that soon after he arrived on scene, he observed an officer, whose identity he did not recall, do a "regular pat-down" on § 87(2)(b) for a firearm. This frisk covered § 87(2)(b) whole body. While PO Reid observed a frisk, he did not know whether § 87(2)(b) unzipped any clothing, if the interior of his clothing was frisked, or of any searches. PO Reid did not believe Lieutenant Meyers ever made any instructions to any officers.

§ 87(2)(g)

§ 87(2)(b) alleged that PO Mcilrath asked him to unzip his outer layer and then reached under his clothing, which PO Mcilrath and PO Caceres denied. Officers described PO Mcilrath's actions as a frisk. After initiating the stop, PO Mcilrath stated that he gained consent from § 87(2)(b) for all further investigative steps. § 87(2)(b) stated he only gave consent for officers to look inside his backpack. § 87(2)(b) and PO Caceres confirmed that PO Mcilrath reached inside the bag upon § 87(2)(b) consent.

§ 87(2)(g)

Allegation D – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel Mcilrath refused to provide his name to § 87(2)(b)

Allegation E – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Nelson Caceres refused to provide his name to § 87(2)(b)

Allegation F – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Richard Reid refused to provide his name to § 87(2)(b)

Allegation G – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Lieutenant Larry Meyers refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated he asked at least four times for all four officers' names, and Lieutenant Meyers continuously responded that it was not his place to ask questions. § 87(2)(b) was not able to view the officers' names or shield numbers due to the elastic bands obscuring their shields and name plates. § 87(2)(b) never made a verbal request for any shield numbers.

All four officers denied that any officer refused to provide his name to § 87(2)(b) PO McIlrath, PO Caceres, and PO Reid denied wearing any obstructions around their name plates or shields, including a black elastic band. Lieutenant Meyers stated it was possible that officers were wearing such a band to commemorate a fallen officer, but that it would not obstruct any names. Neither PO McIlrath nor Lieutenant Meyers specifically recalled § 87(2)(b) requesting any officer's name, and PO Caceres definitively stated that § 87(2)(b) did not do so while PO Caceres was on scene. PO Reid recalled § 87(2)(b) asking only for Lieutenant Meyers' name at some point, but did not know if Lieutenant Meyers' provided his name to § 87(2)(b).

§ 87(2)(g)

Allegation H – Abuse of Authority: Lieutenant Larry Meyers threatened to arrest an individual.

While § 87(2)(b) was speaking to all four officers on scene, § 87(2)(b) observed a Hispanic male walk next to them on § 87(2)(b). § 87(2)(b) asked the man to stop and witness the incident. Lieutenant Meyers told the man to keep moving or he could be arrested for interfering with police activity. The Hispanic male then left the scene. § 87(2)(b) did not know this man, and was unable to provide a specific description.

Lieutenant Meyers denied threatening to arrest anyone during the incident. All four officers did not recall or observe any passers-by or civilians other than § 87(2)(b) on scene.

§ 87(2)(g)

Allegation I – Offensive Language: In the vicinity of § 87(2)(b) in Brooklyn, Lieutenant Larry Meyers made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) stated that after he told all four officers that he intended to call his mother, Lieutenant Meyers commented, "This nigger is calling his mommy," or, "This tough nigger is calling his mommy."

Lieutenant Meyers denied using the expletive “nigger” in any context while speaking with § 87(2)(b). None of the officers recalled any officer use the expletive “nigger” at any point during the incident.

§ 87(2)(g)

Allegation J – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Daniel McIlrath failed to provide § 87(2)(b) with a business card.

Allegation K – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Nelson Caceres failed to provide § 87(2)(b) with a business card.

Allegation L – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Lieutenant Larry Meyers failed to provide § 87(2)(b) with a business card.

Allegation M – Abuse of Authority: In the vicinity of § 87(2)(b) in Brooklyn, Police Officer Richard Reid failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that he was not offered or provided any business cards during the interaction. Following the stop, he asked all four officers for their business cards as well as approached Lt. Meyers specifically to request one. All officers ignored his requests.

PO McIlrath stated that after he frisked § 87(2)(b) he offered him a business card. § 87(2)(b) did not respond. PO McIlrath did not recall any other officers offer, or provide, a business card to § 87(2)(b).

PO Caceres denied that any officer offered or provided their business cards to § 87(2)(b). PO Caceres explained that it slipped his mind to offer and provide one. PO Caceres was unaware of whether § 87(2)(b) ever asked Lieutenant Meyers or PO Reid for their business cards, or if either officer offered and/or provided one.

Lieutenant Meyers did not know if any officers provided or offered to provide § 87(2)(b) with any business cards during the interaction. No officer refused to provide § 87(2)(b) with a business card. Lieutenant Meyers stated that he had never been issued any business cards, had no business cards at the time of the incident, and did not provide § 87(2)(b) with a business card.

PO Reid did not provide a business card to § 87(2)(b). PO Reid did not know whether PO McIlrath, PO Caceres, or Lieutenant Meyers ever offered a business card to § 87(2)(b). § 87(2)(b) never requested a business card from PO Reid. PO Reid did not know whether § 87(2)(b) requested a business card from any other officer on scene. PO Reid confirmed that he had business cards on his person at the time of the incident, but did not know whether the other officers on scene did as well.

Patrol Guide Procedure 203-09, concerning public contact and effective as of October 19, 2019, states that a business card is to be offered to a member of the public by an officer upon conclusion of certain law enforcement activities regarding that civilian, including a stop and/or frisk of an individual (BR 14). Exceptions to this rule exist when a summons is issued, an arrest is made, or exigent circumstances are present. Officers are obligated to carry an appropriate amount of either pre-printed or generic business cards.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation N – Abuse of Authority: At the 79th Precinct stationhouse in Brooklyn, Lieutenant Larry Meyers did not process § 87(2)(b) complaint.

Allegation O – Abuse of Authority: At the 79th Precinct stationhouse in Brooklyn, Lieutenant Larry Meyers failed to provide a business card to § 87(2)(b)

After officers left the scene, § 87(2)(b) mother, § 87(2)(b) picked up § 87(2)(b) and they drove to the 79th Precinct stationhouse. § 87(2)(b) entered the stationhouse first as § 87(2)(b) looked for parking. § 87(2)(b) approached PO Marotta, who was sitting at the desk next to Sgt. Reyes. § 87(2)(b) explained to PO Marotta that he wished to file a complaint regarding his earlier stop. Lieutenant Meyers told PO Marotta that he would deal with § 87(2)(b). § 87(2)(b) § 87(2)(b) stated that he wished to speak with and file a complaint with PO Marotta. Lieutenant Meyers told § 87(2)(b) that he had to speak with Lieutenant Meyers and ordered PO Marotta to, “Stand down.” § 87(2)(b) told Lieutenant Meyers he wished to file a complaint regarding their earlier interaction. Lieutenant Meyers asked if he was “stupid” as he had already explained everything before. When § 87(2)(b) arrived, Lieutenant Meyers explained the reason for her son’s stop and stated that he did not know why § 87(2)(b) wanted to file a complaint. Lieutenant Meyers never processed a complaint from § 87(2)(b). During their conversation at the stationhouse, § 87(2)(b) asked for a business card from Lieutenant Meyers, but did not receive one.

§ 87(2)(b) stated that, when she arrived in the stationhouse, § 87(2)(b) was in mid-conversation with Lieutenant Meyers (BR 15). § 87(2)(b) asked to file a complaint, to which Lieutenant Meyers replied that he could not file a complaint. She did not recall why he stated one could not be filed. § 87(2)(b) asked Lieutenant Meyers why her son could not file a complaint. Lieutenant Meyers responded that there was nothing for him to file a complaint about. § 87(2)(b) § 87(2)(b) asked Lieutenant Meyers for a business card, but Lieutenant Meyers only provided his name.

Lieutenant Meyers stated that he returned to the stationhouse after the conclusion of § 87(2)(b) stop. § 87(2)(b) and § 87(2)(b) arrived at the stationhouse and Lieutenant Meyers approached them in the civilian waiting area. He did not recall any other officers speaking to § 87(2)(b) and § 87(2)(b). Lieutenant Meyers explained to them why § 87(2)(b) had been stopped. § 87(2)(b) never asked to file a complaint or for any business cards. Lieutenant Meyers did not recall § 87(2)(b) asking any other officers to file a complaint. Lieutenant

Meyers never told another officer to, “Stand down,” from processing a complaint by § 87(2)(b).

PO Mcilrath and PO Caceres returned to the stationhouse after the conclusion of § 87(2)(b) stop. PO Mcilrath observed § 87(2)(b) enter the stationhouse and speak to the telephone-switchboard operator, PO Marotta, at the front desk. PO Mcilrath could not hear what § 87(2)(b) discussed with PO Marotta. Both PO Mcilrath and PO Caceres observed § 87(2)(b) speaking to Lieutenant Meyers, but they could not hear their discussion. PO Mcilrath was not aware of the reason for § 87(2)(b) presence at the stationhouse. PO Caceres later learned that § 87(2)(b) was there regarding the earlier stop. PO Mcilrath and PO Caceres did not know if § 87(2)(b) expressed that he wanted to file a complaint regarding the incident nor heard his conversation with Lieutenant Meyers. They did not know if Lieutenant Meyers was asked for a business card. PO Mcilrath and PO Caceres were not aware of Lieutenant Meyers ever telling any officer to, “Stand down.”

PO Reid, PO Marotta, and Sgt. Reyes had no recollection of § 87(2)(b) entering the stationhouse on the incident date and did not recall the occurrence of these allegations (BR 16-17).

§ 87(2)(g)

Allegations Not Pleaded

Officers testified that PO Mcilrath frisked § 87(2)(b) § 87(2)(g).

§ 87(2)(b) stated that he believed that after he knocked on a window of the police van, Lieutenant Meyers rolled the window down and asked him, “What the fuck do you want?” § 87(2)(g).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 18).
 - PO Mcilrath has been a member of service for two years and has been a subject of two allegations in two other CCRB complaints with no substantiations (see officer history).
- § 87(2)(g)

- PO Caceres has been a member of service for three years and has been not been named as a subject in any other CCRB complaints (see officer history)
- Lieutenant Meyers has been a member of service for 13 years and has been a subject of 41 allegations in 25 other CCRB complaints, one of which was substantiated (see officer history):
 - 200614034 involve a substantiated allegation of a search of person against Lieutenant Meyers. The Board recommended Charges and the NYPD imposed Instructions.
 - § 87(2)(g) [REDACTED].
- PO Reid has been a member of service for one year and has been not been named as a subject in any other CCRB complaints (see officer history)

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- On May 2, 2019, the Office of the New York City Comptroller indicated that there were no Notices of Claim regarding this incident (BR 20).

Squad No.: 6

Investigator:	_____ Signature	Inv. Benjamin Shelton _____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	IM Jessica Peña _____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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